

2:00 PM

LINE 9

26-CIV-00804

AHMAD HAWAMDAH VS. ARJUN NARAYAN, ET AL.

AHMAD HAWAMDAH
ARJUN NARAYAN

MICHAEL INDRAJANA
GERALD T. LAU

PLAINTIFF AND CROSS-DEFENDANT HAWAMDAH'S DEMURRER TO RAVE FACTORY LLC'S CROSS-COMPLAINT

TENTATIVE RULING:

The court sustains with leave to amended plaintiff and cross-defendant Ahmad Hawamdah's (Hawamdah) unopposed demurrer to defendant and cross-complainant Rave Factory LLC's (Rave) cross-complaint.

Courts have construed the failure to oppose a motion as having an abandonment of the claims. (See *Herzberg v. County of Plumas* (2005) 133 Cal.App.4th 1, 20 ["Plaintiff did not oppose the County's [motion] to this portion of their seventh cause of action and have submitted no argument on the issue in their briefs on appeal. Accordingly, we deem plaintiff to have abandoned the issue."]; *Bell v. Am. Title Ins. Co.* (1991) 226 Cal.App.3d 1589, 1602 [failure to oppose a motion results in a waiver on appeal of any objection to the resulting order].) While generally, especially when the issue is one of law the court substantively review the demurrer (*California Judge's Benchbook: Civil Proceedings Before Trial* § 6.22 (Thomson Reuters Mar. 2026 update)), in this case on August 5, 2026, the date opposition was due, counsel for Rave telephoned and emailed Department 4 to state that Rave would be filing an amended cross-complaint rather than filing an opposition. Rave has not yet filed an amended cross-complaint, but the court takes the communications to the court and the failure to file the opposition as an acknowledgement that at least some of Hawamdah's arguments have merit.

Accordingly, the court sustains the demurrer with leave to amend. Rave has ten days from notice of entry of order to file an amended cross-complaint. (Cal. Rules of Court, rule 3.1320(g); Code Civ. Proc., § 472b.)

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for Hawamdah shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM

LINE 10

26-CIV-01212

MATTHEW PACLEB, INDIVIDUALLY, AND ON BEHALF OF OTHER SIMILARLY SITUATED
EMPLOYEES VS SALT & STRAW, LLC

MATTHEW PACLEB, INDIVIDUALLY, AND ON BEHALF OF OTHER SIMILARLY SITUATED EMPLOYEES
RYAN T. CHUMAN

SALT & STRAW, LLC

MARK D KEMPLE

DEFENDANTS' MOTION TO CONSOLIDATE AND, ONLY IF NEEDED, TO LIFT STAY

TENTATIVE RULING:

Defendants Salt & Straw, LLC, Salt & Straw, Inc., and Salt & Straw Holdings, LLC's
("Defendants") Motion to Consolidate and, Only if Needed, to Lift Stay is GRANTED.

Code of Civil Procedure section 1048(a) provides:

When actions involving a common question of law or fact are pending before the court, it may order a joint hearing or trial of any or all the matters in issue in the actions; it may order all the actions consolidated and it may make such orders concerning proceedings therein as may tend to avoid unnecessary costs or delay.

The court finds that plaintiff Matthew Pacleb's class action (*Matthew Pacleb v. Salt & Straw, LLC, et al.*, case no. 26-CIV-01212) and his Private Attorney General Act (PAGA) action (*Matthew Pacleb v. Salt & Straw, LLC, et al.*, case no. 26-CIV-03215), both filed in San Mateo County, raise common questions of law and fact based on alleged Labor Code violations arising from the same defendants' policies and practices with regard to defendants' employment of plaintiff. The following chart shows the overlap of claims:

<i>Class action (lead case)</i>	<i>PAGA action</i> (premised on the following claims)
1) Failure to Pay Minimum Wages (§§ 35 – 40)	Failure to pay minimum wages (§ 36(b))
2) Failure to Pay Overtime Wages (§§ 41 – 48)	Failure to pay overtime wages (§ 36(a))
3) Meal Break Violations (§§ 49 – 60)	Failure to provide legally required meal periods & pay required meal period premiums (§§ 36(d), (e))
4) Rest Period Violations (§§ 61 – 70)	Failure to provide legally required rest periods & rest period premiums (§ 36(f), (g))
5) Failure to Timely Pay Wages (§§ 71 – 76)	Failure to timely pay wages (§ 36(h))